

HOUSE No. 2188

The Commonwealth of Massachusetts

PRESENTED BY:

Marcus S. Vaughn

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to bereavement leave.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Marcus S. Vaughn</i>	<i>9th Norfolk</i>	<i>1/14/2025</i>
<i>Chynah Tyler</i>	<i>7th Suffolk</i>	<i>1/16/2025</i>

HOUSE No. 2188

By Representative Vaughn of Wrentham, a petition (accompanied by bill, House, No. 2188) of Marcus S. Vaughn and Chynah Tyler relative to bereavement leave. Labor and Workforce Development.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to bereavement leave.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 149 of the General Laws is hereby amended by inserting after section 52E the
2 following section: -

3 Section 52F. (a) As used in this section, the following words shall, unless the context
4 clearly requires otherwise, have the following meanings:

5 “Bereavement leave”, leave from employment taken to grieve or make arrangements
6 necessitated by the death of a family member or extended family member.

7 “Family member”, the child, parent, legal guardian, spouse or person in long -term
8 romantic relationship with an employee and who resides with that employee.

9 “Employee”, an individual hired by an employer for lawful employment.

10 “Employer” , as defined in section 1 of chapter 151A.

“Extended family member”, the aunt, uncle grandparent, niece, nephew, grandchild, or cousin who assisted in the care of a family member.

(b) An employer shall permit an employee to take bereavement leave following the death of a family member for up to 10 business days in any 12-month period to:

(i) make arrangements necessitated by the death of the family member, including, but not limited to, funeral arrangements, estate preparation or other legal arrangements;

(ii) attend the funeral or equivalent to a funeral of a family member; or

(iii) grieve the death of a family member.

(c) An employer shall permit an employee to take bereavement leave following the death of an extended family member for up to 4 business days in any 12-month period to:

(i) make arrangements necessitated by the death of the extended family member , including, but not limited to, funeral arrangements, estate preparation or other legal arrangements;

(ii) attend the funeral or equivalent to a funeral of an extended family member; or

(iii) grieve the death of an extended family member .

(d) Leave permitted under this section shall be taken within 30 days of the date on which an employee receives notice of the death of a family member or extended family member.

(e) An employer shall have the sole discretion to determine whether any leave taken under this section shall be paid or unpaid.

30 (f) Nothing in this section shall be construed so as to affect any bargaining agreement,
31 company policy or other federal, state or municipal law which provides for greater or additional
32 rights to leave than those provided for by this section.

33 (g) An employer may require proof of death in the form of medical record or police
34 report.

35 (h) An employer may require proof of relation when an employee requests bereavement
36 leave for the death of an extended family member .